

Calendar Lines # 7-8
Case Name James Souza III vs Victoria Garcia
Case No. 26CV493764
Motion to Quash (Line # 7) and Demurrer (Line #8) Before the court is the defendant Motion to Quash Service and Summons (Line #7) and Demurrer (Line #8). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>MOTION TO QUASH (LINE # 7)</u> I. <u>BACKGROUND</u> On June 30, 2026, Defendant Victoria Garcia (“Garcia”) filed a motion to quash service of summons. The motion was accompanied by a proof of service indicating mail service to Plaintiff James Souza III (“Souza”) on July 6, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the Defendant’s moving papers, including, the notice of motion (totaling 2 pages); memorandum of points and authorities (totaling 5 pages); Declaration of Robert T. Meastas and attached Exhibits A-B (totaling 35 pages); proof of services; and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 418.10, a defendant may file a motion to quash service of a summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1)). “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.” (<i>Vons Companies. v. Seabest Foods</i> (1996) 14 Cal.4th 434, 449; accord <i>Snowney v. Harrah’s Entertainment</i> (2005) 35 Cal.4th 1054, 1062; <i>Swenberg v. Dmarcian, Inc.</i> (2021) 68 Cal.App.5th 280, 291; <i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163; <i>Elkman v. National States Ins. Co.</i> (2009) 173 Cal.App.4th 1305, 1313; <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413). “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (<i>Pavlovich v. Super. Ct.</i> (2002) 29 Cal.4th 262, 273; accord <i>Snowney, supra</i>, 35 Cal. 4th at p. 1062; <i>Vons Companies, supra</i>, 14 Cal.4th at p. 449; <i>Swenberg, supra</i>, 68 Cal.App.5th at p. 291). Code of Civil Procedure section 410.10, the court “may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” A court may exercise jurisdiction over a defendant if the plaintiff presents sufficient jurisdictional evidence to establish that “the defendant has such minimum contacts with California that the assertion of jurisdiction does not violate traditional notions of fair play and substantial justice.” (<i>Bruce v. Shabaab</i> (2020) 54 Cal.App.5th 578, 589). There are two different kinds of personal jurisdiction: general jurisdiction and specific jurisdiction. General jurisdiction applies when a defendant is domiciled in the forum or is otherwise “essentially at home.” (<i>Ford Motor Co. v. Montana Eighth Judicial Dist. Ct.</i> (2021) 592 U.S. 351, 358; see also <i>Daimler AG v. Bauman</i> (2014) 571 U.S. 117, 137). Specific jurisdiction, in contrast, examines the relationship between the defendant’s contacts with the forum state and the causes of action asserted in the litigation; it generally requires that there be some evidence of “purposeful availment” or other connection between the defendant and the forum and that the litigation arises out of the defendant’s forum-related contacts. (<i>Ford Motor Co., supra</i>, 592 U.S. at pp. 359-360). Jurisdictional facts must

be established through admissible evidence, including declarations, affidavits, or properly authenticated documents. (*Swenberg, supra*, 68 Cal.App.5th at p. 291; *In re Automobile Antitrust Cases I and II* (2005) 135 Cal.App.4th 100, 110). The plaintiff cannot, however, rely simply on allegations in an unverified complaint or inadmissible hearsay. (*Swenberg, supra*, 68 Cal.App.5th at p. 291). In an appropriate case, discovery on the jurisdictional facts may be permitted. (*HealthMarkets, Inc. v. Super. Ct.* (2009) 171 Cal.App.4th 1160, 1173; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial (2024), ¶ 3:386).

III. ANALYSIS

Here, Defendant Garcia asserts that the proof of service and summons was not perfected and cites to a number of deficiencies: (1) box 2 on the proof of service states that only the summons was served, and no complaint or other required documents were also attached (e.g., civil cover sheet, ADR packet. (Declaration of Meastas ¶ 7; Exhibit A); (2) box 3 lists a “Nellie E. Correa” as the individual who served the summons, but fails to state the relationship if any to the defendant. (*Id.*, at ¶ 8; Exhibit A); (3) box 4 lists an address that does not match the defendant’s address. (*Id.*, at ¶ 9; Exhibit A); (4) the summons was left on the defendant’s residence without a complaint or other required documents. (*Id.*, at ¶ 10; Exhibit A); (5) the proof of service does not indicate the type of service under boxes 5(a)-(b). (*Id.*, at ¶ 11; Exhibit A); and (6) the defendant avers there was no personal or substituted service as required under the law. (*Id.*, at ¶ 12; Exhibit A).

Defendant Garcia asserts obtaining a copy of the Complaint by downloading it from the court’s website. (*Id.*, at ¶ 13). The Complaint is handwritten and alleges of causes of actions relating to inheritance matters. (Complaint; and Defendant’s motion, p. 2). Defense counsel avers that service of process has not been effectuated. (*Id.*, at ¶ 14). Defense counsel Timonthy D. Henry attempted to reach out to the plaintiff on July 18, 2026⁴ via a telephone call and left a message requesting a return call. (*Id.*, at ¶ 15). As of the date of the filing, the plaintiff did not return a call to defense counsel.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court notes that the defendant has submitted a Declaration of Meastas stating six deficiencies as cited above in the proof of service and denies that the defendant was served by personal or substituted service. In regards to substitute service, the defendant submits that the summons was simply left at the doorstep. As to substituted service, Code of Civil Procedure section 415.20 provides, as relevant here:

- (a) In lieu of personal delivery of a copy of the summons and complaint to the person to be served [. . .], a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, [. . .], with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

⁴ The Court notes that the date July 18, 2026 provided in the Declaration of Meastas appears to be in error as it *post-dates* the date the motion was filed on June 30, 2026 and the subsequent proof of service on July 6, 2026.

- (b) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served [. . .], a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing [. . .], in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(Code Civ. Proc. § 415.20 (a)-(b) [emphasis added].) Ordinarily, "two or three attempts" at personal service will satisfy the requirement of reasonable diligence. (*Bein v. Brechtel Jochim Grp. Inc.* (1992) 6 Cal.App.4th 1387, 1391-92).

There has been no showing that alternative service was granted in the matter and a showing of diligence. "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc. § 415.20(b)).

The plaintiff did not oppose the motion. The Court finds that proper service has not been effectuated.

IV. CONCLUSION

Based on the foregoing, the motion being unopposed, the Court GRANTS the defendant's motion to quash service. The Court will prepare the formal Order.

DEMURRER (LINE # 8)

I. BACKGROUND

On July 13, 2026, Defendant Victoria Garcia filed the demurrer to Plaintiff Jammes Souza III's complaint. The demurrer was accompanied by a proof of service to Plaintiff James Souza III ("Souza") on July 6, 2026.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant's moving papers, including, the notice of demurrer (totaling 3 pages); memorandum of points and authorities (totaling 6 pages); Declaration of Robert T. Meastas (totaling 2pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

Given the Court’s ruling in Line # 7, granting the defendant’s motion to quash service, the demurrer is rendered MOOT.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 22, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the defendant’s demurrer is DENIED without prejudice as MOOT in light of the Court granting the motion to quash service and summons filed by the defendant. The Court will prepare the formal Order.